

**BEFORE THE  
FEDERAL MARITIME COMMISSION**

**Docket No. 12-09**

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**CENTURY METAL RECYCLING PVT. LTD**

**COMPLAINANT**

**v.**

**DACON LOGISTICS, LLC dba CODA FORWARDING, GREAT AMERICAN  
ALLIANCE INSURANCE COMPANY, AVALON RISK MANAGEMENT, HAPAG  
LLOYD AMERICA, INC. AND MITSUI OSK LINES**

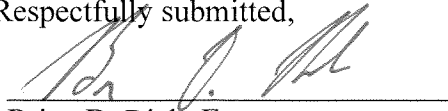
**RESPONDENTS**

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**COMPLAINANT'S REQUEST FOR DISMISSAL AS TO MITSUI OSK LINES, INC. BY  
ORDER OF THE PRESIDING OFFICER**

Complainant Century Metal Recycling, Pvt. Ltd ("Century Metal"), by and through its attorneys, Halloran & Sage, LLP, hereby request that the presiding officer, Clay G. Guthridge, issue an order dismissing Mitsui OSK Lines ("Mitsui") from this action, pursuant to 46 CFR 502.72(2)(a). Mitsui and Century Metal have reached a resolution whereby the containers at issue have been released. Therefore, Century Metal wishes to dismiss its claim only as to Mitsui, voluntarily and urge the Administrative Law Judge to order such dismissal.

Respectfully submitted,

A handwritten signature in dark ink, appearing to read "Brian D. Rich", is written over a horizontal line.

Brian D. Rich, Esq.

Melanie P. Dykas, Esq.

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Counsel for Complainant Century Metal Recycling Pvt. Ltd

Dated in Hartford, CT this fourth day of April, 2013.

**Certificate of Service**

I hereby certify that I have on this fourth day of April, 2013, served a copy of the foregoing Request for Dismissal as to Mitsui OSK Lines upon the following via first class mail:

Hapag-Lloyd America, Inc  
c/o Wayne R. Rhode  
Cozen O'Connor  
Suite 1100  
1627 I Street, N.W.  
Washington, D.C. 20006

Dacon Logistics, LLC  
31 Mountain Boulevard  
Warren, New Jersey 07059

Mitsui OSK Lines  
c/o Kevin J. Hartmann  
Hae Woen Grace Bae  
MOL (America) Inc.  
160 Fieldcrest Avenue  
Edison, NJ 07020

Mitsui OSK Lines  
c/o Marc J. Fink  
Cozen O'Connor  
Suite 1100  
1627 I Street, N.W.  
Washington, D.C. 20006

Great American Alliance Insurance Company and  
Avalon Risk Management  
c/o Theodore H. Adkinson  
Andrew D. Kehagiaras  
Roberts and Kehagiaras LLP  
One World Trade Center,  
Suite 2350  
Long Beach, CA 90831

A handwritten signature in black ink, appearing to read 'B. D. Rich', is written over a horizontal line.

Brian D. Rich, Esq.